

STATE OF INDIANA) IN THE STEUBEN CIRCUIT COURT
) SS:
 COUNTY OF STEUBEN) CAUSE NO.

JULIA DEDELVA and CHARLES)
 DEDELVA,)

Plaintiffs,)

vs.)

IKBOL BOBOHONOV and B&M)
 EXPRESS, INC. d/b/a B & M)
 EXPRESS,)

Defendants.)

COMPLAINT FOR DAMAGES

COUNT I

Plaintiffs, Julia DeDelva and Charles DeDelva, for their first claim for relief
 state:

1. On September 13, 2017, Plaintiff, Charles DeDelva, was driving
 a vehicle west on I-80/90 Indiana Toll Road near the 134.2-mile marker, in Orland,
 Steuben County, Indiana, when his vehicle was struck on the passenger side by a
 white 2017 Freightliner tractor also traveling west on I-80/90 Indiana Toll Road
 which was being driven by the Defendant, Ikbol Bobohonov. Plaintiff, Julia

DeDelva, was a passenger in the vehicle being driven by Plaintiff, Charles DeDelva.

2. The collision was responsibly caused by the carelessness and negligence of the Defendant, Ikbol Bobohono for his failure to maintain a reasonable and proper lookout, failure to maintain control over his vehicle, and following too closely in violation of I.C. § 9-21-8-14 and improper lane usage in violation of Indiana Code § 9-21-8-24.

3. Defendant, Ikbol Bobohono was operating his white 2017 Freightliner tractor in the course and scope of his employment and/or agency with B&M Express, Inc. d/b/a B & M Express (herein known as B&M Express).

4. Defendant, B&M Express, is vicariously liable for the negligent acts of Defendant, Ikbol Bobohono, while acting in the course and scope of his employment and/or agency at the time of the collision.

5. As a result of the collision, the Plaintiff, Julia DeDelva, sustained physical injuries which may be permanent and continues to suffer ongoing physical pain and suffering.

6. As a further result of the collision, the Plaintiff, Julia DeDelva incurred hospital and medical expenses, lost wages, and may incur such expenses and losses in the future, as well as the loss of a whole and useful life.

WHEREFORE, Plaintiffs, Julia DeDelva and Charles DeDelva, demand judgment against the Defendants, Ikbol Bobohono and B&M Express, in an amount that will reasonably compensate them for the injuries and damages sustained, for the costs of this action and for all other just and proper relief in the premises and for trial by jury.

COUNT II

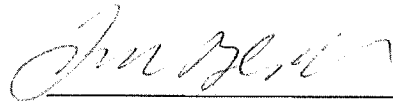
Plaintiffs, Julia DeDelva and Charles DeDelva, for their second claim for relief state:

1. Plaintiff, Charles DeDelva, realleges rhetorical paragraphs 1 through and including 6 of Count I of this Complaint for Damages as if fully set forth herein and by reference makes them a part of this Count II.

2. At all times material to the allegations of Count II of this Complaint he was the spouse of Plaintiff, Julia DeDelva.

3. As a result of the carelessness and negligence of the Defendants, Ikbol Bobohonov and B&M Express, he lost the services and consortium of his spouse.

WHEREFORE, Plaintiffs, Julia DeDelva and Charles DeDelva, demand judgment against the Defendants, Ikbol Bobohono and B&M Express, in an amount that will reasonably compensate them for the injuries and damages sustained, for the costs of this action and for all other just and proper relief in the premises and for trial by jury.



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